This amendment is issued under the authority of 5 U.S.C. 301, 31 U.S.C. 752. As it is entirely administrative in nature and involves the fiscal policy of the United States, notice and public procedures thereon are found to be unnecessary.

Dated: April 22, 1977.

DAVID MOSSO,
Fiscal Assistant Secretary.

[FR Doc.77-12184 Filed 4-27-77;8:45 am]

Title 43—Public Lands; Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[PLO 5616 (F-031005)]

ALASKA

Partial Revocation of Executive Order No. 4949

AGENCY: Bureau of Land Management, Interior.

ACTION: Partial Revocation of Executive Order to Make Land Available for State Selection.

SUMMARY: This public land order partially revokes a previous withdrawal of lands for the Alaska Railroad. This revocation is necessary to permit the State of Alaska to select these lands under the Alaska Statehood Act.

EFFECTIVE DATE: April 21, 1977.

FOR FURTHER INFORMATION CONTACT:

Robert L. Means, Alaska Native Claims, Settlement Act Coordinator, Bureau of Land Management, Department of the Interior, Washington, D.C. 20240, 202-343-3066.

By virtue of the authority contained in section 204 of the Act of October 21, 1976, 90 Stat. 2743, 43 U.S.C. 1701, it is ordered as follows:

Executive Order No. 4949 of August 14, 1928, as amended, which withdrew lands for use in connection with construction and operation of The Alaska Railroad, is hereby revoked insofar as it relates to the following described lands:

FAIRBANKS MERIDIAN

T. 12 S., R. 7 W.,

Section 18, all of lots 2 and 3, excepting therefrom the following described lands, which are within material site right-of-way F-509:

Beginning at a point on the westerly line of section 18, T. 12 S., R. 7 W., said point being N. 00°13'33" W., a distance of 1,163.24 feet from the southwest corner of section 18; thence S. 80°26'30" E., a distance of 446.49 feet, corner No. 1; thence southeasterly along a 04°18'01" curve to the left (radius=1,332.40 feet) through an arc of 15°32'17" a distance of 361.33 feet to corner No. 2; thence N. 00°13'33" W., a distance of 987.06 feet to corner No. 3; thence S. 89°46'27" W., a distance of 800.00 feet to corner No. 4; thence S. 00°13'33" E., 898.52 feet to the point of beginning, containing 17.631 acres, more or less.

The lands affected aggregate approximately 59.449 acres.

The described lands are withdrawn by Public Land Order No. 5186 of March 15, 1972, which permits selection by the State under the Alaska Statehood Act, 72 Stat. 339.

GUY R. MARTIN,
Assistant Secretary of the Interior.

April 21, 1977.

[FR Doc.77-12151 Filed 4-27-77;8:45 am]

Title 47—Telecommunication

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

PART 97—AMATEUR RADIO SERVICE

Eligibility for Re-examination for Amateur Radio Operator License

AGENCY: Federal Communications Commission.

ACTION: Final rule.

SUMMARY: Editorial amendment of § 97.33 of the Commission's Rules to prohibit an applicant failing an amateur radio operator examination from taking another examination for the same or higher class operator license within thirty days.

EFFECTIVE DATE: May 2, 1977.

ADDRESS: Federal Communications Commission, Washington, D.C. 20554.

FOR FURTHER INFORMATION CONTACT:

Gregory M. Jones, Personal Radio Division, 20554, 202-632-7175.

SUPPLEMENTARY INFORMATION:

Adopted: April 20, 1977.

Released: April 21, 1977.

In the matter of correction of § 97.33 of the Commission's Rules concerning operator examinations in the amateur radio service.

1. On June 6, 1976 the Commission adopted a First Report and Order in Docket 20282, FCC 76-537, 41 FR 25013 (1976). Among the rule revisions adopted in the Frst Report and Order was an amendment to § 97.33 of the Commission's Rules. Section 97.33 of the Rules was amended to read as follows: "An applicant who fails a written examination for an amateur radio operator license may not take another written examination for the same or higher class license within 30 days" (emphasis supplied). Previously, § 97.33 of the Rules had prohibited applicants from retaking either written or telegraphy examinations within thirty days of having failed such examinations.

2. Limiting the 30 day waiting requirement to written examinations only was an inadvertent error by the Commission. Such an amendment was not proposed and was not discussed by the comments in this proceeding, and we are by this Order acting to correct our previous error by amending § 97.33 of the Rules to prohibit the retaking of both written and telegraphy examinations by applicants who have failed such examinations within the previous 30 day period.

3. Authority for this amendment appears in sections 4(i), 5(d), and 303 of the Communications Act of 1934, as amended. Because the amendment adopted herein is of an editorial character, designed solely to correct a previous error, the prior notice and public procedure provisions of the Administrative Procedure Act, 5 U.S.C. 552, are not applicable.

4. Accordingly, *it is ordered*, That § 97.33 of the Commission's Rules is amended as set forth below effective May 6, 1977.

(Secs. 4, 5, 303, 48 Stat., as amended, 1066, 1068, 1082; 47 U.S.C. 154, 155, 303.)

FEDERAL COMMUNICATIONS COMMISSION,
RICHARD D. LICHTWARDT,
Executive Director.

Part 97 of Chapter 1 of Title 47 of the Code of Federal Regulations is amended, as follows:

1. Section 97.33 is amended to read as follows:

§ 97.33 Eligibility for re-examination.

An applicant who fails an examination element required for an amateur radio operator license shall not apply to be examined for the same or higher examination element within thirty days of the date the examination element was failed.

[FR Doc.77-12203 Filed 4-27-77;8:45 am]

Title 49—Transportation

CHAPTER V—NATIONAL HIGHWAY TRAFFIC SAFETY ADMINISTRATION, DEPARTMENT OF TRANSPORTATION

[Docket No. 74-19; Notice 02]

PART 569—REGROOVED TIRES

Sale and Use

AGENCY: National Highway Traffic Safety Administration, DOT.

ACTION: Final Rule.

SUMMARY: This amendment of the regulation governing the sale and use of regrooved tires implements a provision of the National Traffic and Motor Vehicle Safety Act (the Act) that the lease as well as the sale of certain regrooved tires be permitted. The Act was amended in 1974 to permit lease as well as sale, following a court decision which construed the Act to permit only the sale of regrooved tires.

EFFECTIVE DATE: March 7, 1977.

FOR FURTHER INFORMATION CONTACT:

Tad Herlihy, Office of Chief Counsel, National Highway Traffic Safety Administration, Washington, D.C. 20590. (202-426-9511).

SUPPLEMENTARY INFORMATION: Section 204(a) of the National Traffic and Motor Vehicle Safety Act (the Act) (15 U.S.C. § 1424(a)) governs the sale and use of regrooved tires. Regrooved tires are defined in the Act as tires on which a new tread has been produced by cutting into the tread of a worn tire. As enacted originally, § 204(a) provided:

Sec. 204. (a) No person shall sell, offer for sale, or introduce for sale or deliver for introduction in interstate commerce, any tire or motor vehicle equipped with any tire which has been regrooved, except that the Secretary may by order permit the sale of regrooved tires (designed and constructed in accordance with the Act's intent).

Part 569 of NHTSA regulations was issued (34 FR 1149, January 24, 1969) to implement this provision, and it addressed both the circumstances under which lease and sale of regrooved tires would be permissible. A United States Court of Appeals found this aspect of Part 569 impermissibly broad, and held invalid that portion of the regulation which would authorize the introduction in interstate commerce of regrooved tires by means other than by sale. (*National Association of Motor Bus Owners* v. *Brinegar*, 483 F2d 1284 (7th Cir. 1973).) Subsequently, the agency amended Part 569 to conform to the court's decision (39 FR 15038, April 30, 1974).

Section 204(a) was amended in 1974 so that the Secretary may by order permit the sale, offer for sale, introduction for sale, or delivery for introduction in interstate commerce of regrooved tires that are properly designed and constructed. (Pub. L. 93-492, § 110(c) (October 27, 1974).) The agency hereby amends §§ 569.1 and 569.7(a) to reflect this statutory change.

In consideration of the foregoing, 49 CFR Part 569, "Regrooved Tires," is amended as follows:

1. Section 569.1 is amended to read:

§ 569.1 Purpose and scope.

This part sets forth the conditions under which regrooved and regroovable tires manufactured or regrooved after the effective date of the regulation may be sold, offered for sale, introduced for sale or delivered for introduction into interstate commerce.

2. Section 569.7(a) is amended in part by deletion of the word "insofar" and the phrase "the sale of regrooved tires is" from the first sentence of § 569.7(a)(1) and by revision of the first statement in § 569.7(a)(2) to read:

§ 569.7 Requirements.

(a) *Regrooved tires.* (1) * * *

(2) A regrooved tire may be sold, offered for sale, or introduced for sale or delivered for introduction into interstate commerce only if it conforms to each of the following requirements:

* * * * *

EFFECTIVE DATE FINDING: Because this amendment implements a statutory provision and creates no additional requirement for any person, it is found that notice and public procedure thereon are unnecessary and that an immediate effective date is in the public interest.

(Sec. 119, Pub. L. 89-563, 80 Stat. 718 (15 U.S.C. 1407); Sec. 110(c), Pub. L. 93-492, 88 Stat. 1484 (15 U.S.C. 1424); delegation of authority at 49 CFR 1.50.)

Issued on February 28, 1977.

JOHN W. SNOW,
Administrator.

[FR Doc.77-11908 Filed 4-27-77;8:45 am]

CHAPTER VIII—NATIONAL TRANSPORTATION SAFETY BOARD

PART 821—RULES OF PRACTICE IN AIR SAFETY PROCEEDINGS

PART 825—RULES OF PROCEDURE FOR MERCHANT MARINE APPEALS FROM DECISIONS OF THE COMMANDANT, U.S. COAST GUARD

Ex Parte Communications

AGENCY: National Transportation Safety Board.

ACTION: Final rule.

SUMMARY: These regulations prohibit certain ex parte communications with respect to formal NTSB adjudications, establish procedures for handling proscribed communications, and permit sanctions against a party who knowingly makes or causes such a communication to be made.

EFFECTIVE DATE: April 18, 1977.

FOR FURTHER INFORMATION CONTACT:

Mr. Fritz L. Puls, 202-426-8911.

SUPPLEMENTARY INFORMATION: On March 3, 1977, a notice of proposed rulemaking was published in the FEDERAL REGISTER (42 FR 12208) to amend the NTSB rules governing air safety and marine enforcement proceedings (Parts 821 and 825, respectively) by including provisions relating to ex parte communications. The proposed regulations were designed to implement Section 4 of the Government in the Sunshine Act, Pub. L. 94-409. Interested persons were given 30 days in which to submit written comments regarding the proposed rules and no comments have been received.

Accordingly, the proposed amendments to 49 CFR Parts 821 and 825 are hereby adopted without change as set forth below.

Adopted: April 18, 1977.

WEBSTER B. TODD, Jr.,
Chairman.

1. In the Table of Contents in Part 821, by adding a heading for new Subpart J, and by adding headings for new §§ 821.60, 821.61, 821.62, and 821.63, as follows:

Subpart J—Ex Parte Communications

Sec.
821.60 Definitions.
821.61 Prohibited ex parte communications.
821.62 Procedures for handling ex parte communications.
821.63 Requirement to show cause and imposition of sanction.

AUTHORITY: Sec. 4, Government in the Sunshine Act, Pub. L. 94-409, amending 5 U.S.C. 556(d) and 5 U.S.C. 557; Title VI, Federal Aviation Act of 1958, as amended, 49 U.S.C. 1421 et seq.; Independent Safety Board Act of 1974, Pub. L. 93-633, 88 Stat. 2166 (49 U.S.C. 1901 et seq.).

2. By adding a new Subpart J to Part 821 to read as follows:

Subpart J—Ex Parte Communications

§ 821.60 Definitions.

As used in this subpart:

"Board decisional employee" means a Board Member, administrative law judge, or other employee who is or who may reasonably be expected to be involved in the decisional process of the proceeding;

"Ex parte communication" means an oral or written communication not on the public record with respect to which reasonable prior notice to all parties is not given, but it shall not include requests for status reports on any matter or proceeding covered by this Part.

§ 821.61 Prohibited ex parte communications.

(a) The prohibitions of this section shall apply from the time a proceeding is noticed for hearing unless the person responsible for the communication has knowledge that it will be noticed, in which case the prohibitions shall apply at the time of the acquisition of such knowledge.

(b) Except to the extent required for the disposition of ex parte matters as authorized by law:

(1) No interested person outside the Board shall make or knowingly cause to be made to any Board employee an ex parte communication relevant to the merits of the proceeding;

(2) No Board employee shall make or knowingly cause to be made to any interested person outside the Board an ex parte communication relevant to the merits of the proceeding.

Ex parte communications regarding solely matters of Board procedure or practice are not prohibited by this section.

§ 821.62 Procedures for handling ex parte communications.

A Board employee who receives or who makes or knowingly causes to be made a communication prohibited by § 821.61 shall place on the public record of the proceeding:

(a) All such written communications;

(b) Memoranda stating the substance of all such oral communications; and

(c) All written responses, and memoranda stating the substance of all oral responses, to the materials described in paragraphs (a) and (b) of this section.

§ 821.63 Requirement to show cause and imposition of sanction.

(a) Upon receipt of a communication knowingly made or knowingly caused to be made by a party in violation of § 821.61, the Board, administrative law judge, or other employee presiding at the hearing may, to the extent consistent with the interests of justice and the policy of the underlying statutes, require the party to show cause why his or her claim or interest in the proceeding should not be dismissed, denied, disregarded, or otherwise adversely affected on account of such violation.

(b) The Board may, to the extent consistent with the interests of justice and the policy of the underlying statutes administered by the Board, consider a violation of this subpart sufficient grounds for a decision adverse to a party who has knowingly committed such violation or knowingly caused such violation to occur.